

COMMISSION IMPLEMENTING DECISION (EU) 2015/206

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COMMISSION IMPLEMENTING DECISION (EU) 2015/206

of 9 February 2015

on the approval of the Daimler AG efficient exterior lighting using light emitting diodes as an innovative technology for reducing CO₂ emissions from passenger cars pursuant to Regulation (EC) No 443/2009 of the European Parliament and of the Council

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EC) No 443/2009 of the European Parliament and of the Council of 23 April 2009 setting emissions performance standards for new passenger cars as part of the Community's integrated approach to reduce CO₂ emissions from light-duty vehicles (1), and in particular Article 12(4) thereof,

Whereas:

(1)

The manufacturer Daimler AG (the 'Applicant') submitted an application for the approval of efficient exterior lighting with the use of light emitting diodes (LEDs) as an innovative technology package on 14 November 2013. The completeness of the application was assessed in accordance with Article 4 of Commission Implementing Regulation (EU) No 725/2011 (2). The Commission identified certain relevant information as missing in the original application and requested the Applicant to complete it. The Applicant provided the required information on 14 May 2014. The application was found to be complete and the period for the Commission's assessment of the application started on the day following the date of official receipt of the complete information, i.e. 15 May 2014.

(2)

The application has been assessed in accordance with Article 12 of Regulation (EC) No 443/2009, Implementing Regulation (EU) No 725/2011 and the Technical Guidelines for the preparation of applications for the approval of innovative technologies pursuant to Regulation (EC) No 443/2009 (the Technical Guidelines) (3).

(3)

The application refers to efficient exterior lighting with the use of light emitting diodes in the low beam headlamp, the high beam headlamp, the front position, and the licence plate. This technology package is similar to the innovative technologies approved as an eco-innovation in Commission Implementing Decisions 2013/128/EU (4) and 2014/128/EU (5). It should also be noted that the application by Daimler AG is based on the simplified approach described in the Technical Guidelines as the application previously approved by Implementing Decision 2014/128/EU, whereas the application approved by Implementing

Decision 2013/128/EU was based on the comprehensive approach.

(4)

The Commission finds that the information provided in the application demonstrates that the conditions and criteria referred to in Article 12 of Regulation (EC) No 443/2009 and in Articles 2 and 4 of Implementing Regulation (EU) No 725/2011 have been met.

(5)

The Applicant has demonstrated that the use of the LEDs in the low beam headlamp, the high beam headlamp, the front position, and the licence plate did not exceed 3 % of the new passenger cars registered in the reference year 2009. In support of this the Applicant has referred to the Technical Guidelines, which provides for the summary of the CLEPA LIGHT Sight Safety report. The Applicant has used predefined functions and averaged data in line with the simplified approach specified in the Technical Guidelines.

(6)

The Applicant has in accordance with the simplified approach described in the Technical Guidelines used halogen lighting as baseline technology for demonstrating the CO₂ reducing capacity of the efficient exterior lighting with the use of light emitting diodes in the low beam headlamp, the high beam headlamp, the front position, and the licence plate.

(7)

The Applicant has provided a methodology for testing the CO₂ reductions which includes formulae that are consistent with the formulae described in the Technical Guidelines for the simplified approach with regard to lighting functions. Considering that the Applicant has applied for an innovative technology package of efficient exterior lighting with the use of LEDs, the Commission finds it appropriate to modify the formulae for the calculation of CO₂ savings to reflect the total CO₂ savings of the lighting package. As a consequence, the methodology specified in the Annex to the decision differs in some essential elements from that approved by Implementing Decision 2014/128/EU. The Commission considers that the testing methodology will provide testing results that are verifiable, repeatable and comparable and that it is capable of demonstrating in a realistic manner the CO₂ emissions benefits of the innovative technology with strong statistical significance in accordance with Article 6 of Implementing Regulation (EU) No 725/2011.

(8)

Against that background the Commission finds that the Applicant has demonstrated satisfactorily that the emission reduction achieved by the innovative technology is at least 1 g CO₂/km.

(9)

Since the activation of the exterior lighting is not required for the CO₂ emissions type approval test referred to in Regulation (EC) No 715/2007 of the European Parliament and of the Council (6) and Commission Regulation (EC) No 692/2008 (7), the Commission is satisfied that the lighting functions in question are not covered by the standard test cycle.

(10)

The activation of the lighting functions concerned is mandatory to ensure the safe operation of the vehicle and as a consequence not dependant on the choice of the driver. On that basis the Commission finds that the manufacturer should be considered accountable for the CO₂ emission reduction due to the use of the LEDs.

(11)

The Commission finds that the verification report has been prepared by TÜV NORD Mobilität GmbH & Co. KG which is an independent and certified body and that the report supports the findings set out in the application.

(12)

Against that background, the Commission finds that no objections should be raised as regards the approval of the innovative technology in question.

(13)

Any manufacturer wishing to benefit from a reduction of its average specific CO₂ emissions for the purpose of meeting its specific emissions target by means of the CO₂ savings from the use of the innovative technology approved by this Decision, should in accordance with Article 11(1) of Implementing Regulation (EU) No 725/2011, refer to this Decision in its application for an EC type-approval certificate for the vehicles concerned.

(14)

For the purposes of determining the general eco-innovation code to be used in the relevant type approval documents in accordance with Annexes I, VIII and IX to Directive 2007/46/EC of the European Parliament and of the Council (8), the individual code to be used for the innovative technology approved through this Decision should be specified.

(15)

The period for the assessment of the innovative technology referred to in Article 10(2) of Implementing Regulation (EU) No 725/2011 is due to expire. It is therefore appropriate that the Decision enters into force as soon as possible,

HAS ADOPTED THIS DECISION:

Article 1

1. The efficient exterior lighting with the use of light emitting diodes (LEDs) intended for use in M1 vehicles is approved as an innovative technology within the meaning of Article 12 of Regulation (EC) No 443/2009.
2. The CO₂ emissions reduction from the use of the efficient exterior lighting with the use of light emitting diodes (LED) referred to in paragraph 1 shall be determined using the methodology set out in the Annex.
3. The individual eco-innovation code to be entered into type approval documentation to be used for the innovative technology approved through this Decision shall be '10'.

Article 2

This Decision shall enter into force on the seventh day following that of its publication in the Official Journal of the European Union.

Done at Brussels, 9 February 2015.